Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held Electronically on Monday, March 28, 2022

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Present:	Mayor	S. Collier
		M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier noted connection difficulties and relinquished the Chair for the meeting to Deputy Mayor Lee.

Deputy Mayor Lee called the meeting to order at 7:01 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of the Minutes

Moved by: S. Collier
Seconded by: M. Crawford

That the following minutes of previous Council meetings be adopted:

- Regular Meeting of February 28, 2022;
- Special Meeting of March 11, 2022; and
- Closed Session Meeting of March 11, 2022

CARRIED

4. Question Period

Deputy Mayor Lee noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. Alexander Harras, Manager of Legislative Services/Deputy Clerk, noted that three items of correspondence had been received in relation to item 9.2 on the meeting agenda and circulated to Council Members in advance of the meeting.

5. Delegations and Presentations

5.1 Presentation: Annual Update and Presentation to Council

Clint Scott, Unit Training Officer and Community Development Officer, PARA Marine Search and Rescue, delivered a presentation regarding PARA Marine Search & Rescue: 2022 Community, Government & Corporate Awareness. C. Scott discussed services provided, branding, the 5 year Strategic & Business Plan, management transparency, Search and Rescue (SAR) readiness, financial strength and sustainability, 2021 Durham Region report highlights, executed missions and tasking locations, and asset management for vessel replacement with near shore capability.

Council Members asked questions regarding search and rescue statistics and channels

available to report a search and rescue incident. C. Scott responded to questions from Council Members.

On behalf of Council, Deputy Mayor Lee thanked C. Scott for the presentation.

5.2 **Presentation: Ajax Business Improvement Area Feasibility Study**

Bruce Peever, Lead Engagement Partner, and Sana Malik, Senior Manager, KPMG, delivered a presentation reviewing the contents of the written report and recommendations contained therein. B. Peever reviewed project objectives, project drivers, and timelines. S. Malik reviewed two viable options for the Town's consideration: 1) maintain and monitor BIAs for a trial period or 2) dissolve BIAs and have the Town absorb BIA responsibilities and execute a business engagement strategy. S. Malik discussed evaluation criteria, ranked assessment of the options, and next steps.

Council Members asked questions regarding stakeholder engagement, timeframes to implement the recommendations, historical comparators, and process to develop and implement a business engagement strategy. S. Malik, B. Peever, and Samuel Twumasi, Manager of Economic Development, responded to questions from Council Members.

On behalf of Council, Deputy Mayor Lee thanked B. Peever and S. Malik for the presentation.

With the consent of Members present, item 7.4.3 was advanced in the order business.

7.4.3 **PDS-2022-10: Business Improvement Area Feasibility Study**

Council Members asked questions regarding operational impacts, service levels, opportunities to revitalize BIAs in the future, process associated with BIA revitalization, event sponsorship sources, and communication strategies. Dave Meredith, Director of Operations & Environmental Services, Samuel Twumasi, Manager of Economic Development & Tourism, and Nicole Cooper, Director of Legislative & Information Services/Clerk, responded to questions from Council Members.

Moved by: A. Khan
Seconded by: J. Dies

1. That Ajax Council endorse Option #2, as recommended by KPMG in the *Ajax Business Improvement Area Feasibility Study.*

2. That a By-law to dissolve the Downtown Ajax and Pickering Village Business Improvement Areas be approved at the March 28, 2022 meeting of Council;

3. That staff be directed to perform all necessary administrative functions to conclude the business of the BIAs and assume their assets and liabilities in accordance with section 214 of the *Municipal Act, 2001,* as amended; and

4. That staff be directed to develop and implement a Business Engagement Strategy for those businesses within the former BIA districts, and report back to a future meeting of Council or the appropriate Standing Committee with information and status updates on the engagement strategy.

CARRIED

Recorded Vote

In Favour: Councillor Tyler Morin, Councillor Bower, Mayor Collier, Regional Councillor Crawford, Regional Councillor Dies, Councillor Khan, Regional Councillor Lee

Opposed: None

5.3 **Presentation: Environmental Sustainability Projects and Programs – Status Update**

Cameron Richardson, Supervisor of Environmental Sustainability & Climate Change, delivered a presentation reviewing the contents of the written report and recommendations contained therein. C. Richardson discussed environmental sustainability projects and programs, objectives and accomplishments associated with the Ajax Climate Risk and Resiliency Plan, energy, waste, Canada Target 1, education and outreach, and next steps.

Council Members asked questions regarding activities associated with the Ajax Sustainable Neighbourhood Action Program initiative, flood risk and emergency preparedness plans, site specific emergency response plans for the Lower Carruthers, and opportunities for the Town to submit comments regarding alternative lands needs assessment. C. Richardson and Dave Lang, Fire Chief, responded to questions from Council Members.

On behalf of Council, Deputy Mayor Lee thanked C. Richardson for his presentation.

With the consent of Members present, item 7.4.4 was advanced in the order business.

7.4.4 **PDS-2022-09: Environmental Sustainability Projects and Programs – Status Update**

Council Members asked questions regarding greenhouse gas (GHG) emissions reduction targets. C. Richardson responded to the question from Council Members.

Moved by: J. Dies
Seconded by: M. Crawford

1. That the report on Environmental Sustainability Projects and Programs – Status Update be received for information.

CARRIED

5.4 **Presentation: Response to the January 17, 2022 Winter Storm Event**

Dave Meredith, Director of Operations & Environmental Services, delivered a presentation on the January 17, 2022 Winter Storm Event. D. Meredith discussed snow accumulation, provincial regulations, road classifications, plow routes, service delivery, winter event response times, challenges, lessons learned and opportunities for improvement, and communication tools.

Council Members asked questions regarding snow plow routes, streets that may have been missed during routes, windrow clearing services, communication standards and service delivery of the Seniors Snow Removal Program, challenges for private contractors, and rationale for technical issues with the Track my Plow App. D. Meredith and Shane Baker, Chief Administrative Officer, responded to questions from Council Members.

On behalf of Council, Deputy Mayor Lee thanked D. Meredith for his presentation.

6. Correspondence

Members separated correspondence items 6.4, 6.7, 6.8 and 6.9 for discussion.

Moved by: A. Khan
Seconded by: L. Bower

That the balance of the report (Items 6.1, 6.2, 6.3, 6.5, 6.6, 6.10 and 6.11) dated March 28, 2022 containing Items of Correspondence be received for information.

CARRIED

Items 6.4, 6.8 and 6.9

Council Members discussed the motion, noting challenges with current planning processes.

Moved by: S. Collier
Seconded by: A. Khan

That Item 6.4 (Town of Aurora – Request to Dissolve Ontario Land Tribunal (OLT)), Item 6.8 (City of Markham – Dissolve Ontario Land Tribunal (OLT)), and Item 6.9 (The Regional Municipality of York - Town of Aurora Resolution - Request to Dissolve the Ontario Land Tribunal (OLT)) of the Correspondence Report be endorsed.

CARRIED

Item 6.7

Moved by: L. Bower

Seconded by: J. Dies

That Item 6.7 (Town of Bracebridge – Hospital Capital Funding) of the Correspondence Report be received for information.

CARRIED

7. Reports

7.1. Community Affairs & Planning Committee Report

None

7.2. General Government Committee Report

7.2.2 General Government Committee, March 21, 2022

Moved by: L. Bower
Seconded by: R. Tyler Morin

That the General Government Committee Report dated March 21, 2022, be adopted.

CARRIED

7.3 Summary of Advisory Committee Activities

Moved by: J. Dies
Seconded by: M. Crawford

That the Summary of Advisory Committee Activities Report dated March 28, 2022, as attached to the meeting agenda be received for information, and that the recommendations contained therein be referred to staff where applicable.

CARRIED

7.4 Departmental Reports

7.4.1 CAO-2022-04: Contract Award – Core Service Reviews

Moved by: L. Bower
Seconded by: R. Tyler Morin

That Council award the contract for the Core Service Reviews to Grant Thornton LLP in the amount of $294,884.80 (inclusive of all taxes).

CARRIED

7.4.2 CAO-2022-05: Partnership with Computek College and Execution of Skills Development Fund Transfer Payment Agreement

Moved by: S. Collier
Seconded by: A. Khan

a) That the Mayor and Clerk be authorized to execute a Transfer Payment Agreement with the Ministry of Labour, Training and Skills Development for a 1 year partnership with Computek College through the Skills Development Fund grant program.

b) That the Chief Administrative Officer be authorized to execute a Memorandum of Understanding with Computek College to formalize the terms of the partnership and to meet the obligations of the Ministry of Labour, Training and Skills Development.

CARRIED

8. Regional Councillors' Report

Regional Council Members discussed the Blue Box Program transition plan, design options for bus shelters along the Kingston Road corridor (Highway 2) noting that a survey is available, Vision Zero impaired driving and distracted driving statistics, and climate change through land use planning.

Moved by: M. Crawford
Seconded by: J. Dies

That the Regional Councillors' Reports of March 28, 2022 be received for information.

CARRIED

9. Business Arising from Notice of Motion

Motion to Suspend the Rules of Procedure (Requires 2/3rds)

Moved by: J. Dies
Seconded by: L. Bower

That the Rules of Procedure be suspended in order to introduce a motion without notice regarding Traffic and Safety Impacts of School Bell Time Changes.

CARRIED
on 2/3rds

Deputy Mayor Lee vacated the Chair. Regional Councillor Crawford assumed the Chair.

9.1 Impact of iGaming on Casinos

Deputy Mayor Lee and Mayor Collier introduced the motion and reviewed its contents.

Moved by: S. Lee
Seconded by: S. Collier

WHEREAS the future of Casino Ajax, which has consistently been one of the highest performing slots facilities in North America since it opened in 2006, is a top priority of Ajax Council and the community;

AND WHEREAS Casino Ajax has contributed more than $96 million in non-tax revenue, accelerating major capital projects in the Town such as the Audley Recreation Centre and critical fleet vehicle replacement;

AND WHEREAS iGaming Ontario, a subsidiary of the Alcohol and Gaming Commission of Ontario (AGCO), will launch on April 4, 2022, to establish Ontario's new online gaming market;

AND WHEREAS a study commissioned by Great Canadian Gaming Corporation examining the impact of the iGaming initiative on Ontario's gaming industry concluded there is a potential loss of more than 2,500 Ontario-based casino jobs, $191 million in municipal contributions, and $3 billion in Ontario government revenues over the next five years;

AND WHEREAS on February 28, 2022, Ajax Council endorsed a Scugog Council motion calling on the provincial government to provide certainty that iGaming will not have a negative impact on stakeholders in the land-based gaming industry, like host communities and casino workers;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council calls on the provincial government to demonstrate that it has considered the risks of iGaming to the land-based gaming sector, and provide certainty to operators and host communities that facility operations will not be negatively affected, and require that iGaming operators be Canadian-owned and Canadian staffed;

2. Ajax Council recognizes Casino Ajax as a valued asset and requests an extension beyond the current 2026 lease expiry date; and

3. This motion be circulated to the Hon. Doug Ford, Premier of Ontario, the Hon. Peter Bethlenfalvy, Finance Minister of Ontario, the Hon. Doug Downey, Attorney General of Ontario, the Ajax Provincial Constituency Office, Scugog Council, Jim Warren, Chair of OLG, Great Canadian Gaming Corporation, and Casino Ajax.

CARRIED

Regional Councillor Crawford vacated the Chair. Deputy Mayor Lee resumed the Chair.

9.2 **Endorse No Urban Expansion for Community Area in Durham**

Mayor Collier and Regional Councillor Dies introduced the motion and reviewed its contents.

Moved by: S. Collier
Seconded by: J. Dies

WHEREAS the Region of Durham is in the process of undertaking Envision Durham, the Municipal Comprehensive Review (MCR) of the Regional Official Plan to accommodate a population of 1.3 million and 460,000 jobs by 2051;

AND WHEREAS the Region is completing its MCR by looking at how and where our cities and towns may grow, how to use and protect our land and resources, what housing types and job opportunities are needed for our residents, and how people and goods will move across our region and beyond;

AND WHEREAS the Region's Land Needs Scenarios Assessment Summary Report (released March 11) indicates that population growth can be accommodated in Durham with an intensification rate of 55% and a Greenfield area density of 64 people and jobs per hectare with 0 hectares of urbanization;

AND WHEREAS scenarios that promote low density residential do not comply to the Growth Plan, 2020, and continue land consumptive sprawl that eliminates agricultural land, increases flooding, and impacts the natural environment;

AND WHEREAS by increasing the intensification target and shifting the unit mix towards medium- and high-density dwellings, the total Community Area land needed to accommodate residential uses decreases from 5,400 hectares to a "no-urban-expansion" scenario to accommodate population growth;

AND WHEREAS a "no-urban-expansion" scenario to accommodate population growth provides the necessary time to evaluate our evolving growth needs, as the official plan process calls for review and possible amendments every five years;

AND WHEREAS by voting to grow within the existing urban footprint for residential uses, elected leaders end the threat to arable farmland, support local food production, combat climate change, protect natural heritage systems (rivers, wetlands, and agricultural lands), introduce new and balanced housing options, emphasize higher densities, and create more walkable, transit-friendly communities;

AND WHEREAS the Town of Ajax declared a climate emergency to acknowledge the impacts of climate change and reaffirm our commitment to mitigate and adapt to those impacts wherever possible, as have numerous others including but not limited to the Region of Durham, Town of Whitby, Municipality of Clarington, Brock Township, City of Toronto, City of Hamilton, and City of London;

AND WHEREAS the Town continues to support responsible expansion and intensification of Employment Areas along major highways and abutting existing Employment Areas, to support job growth in Durham Region;

AND WHEREAS municipalities including the City of Hamilton, City of Burlington, Town of Oakville, and Halton Region have endorsed "no-urban-expansion" scenarios as part of the MCR processes in their respective communities;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council supports no urban expansion onto farmland for residential purposes in Durham Region's MCR process (up to 2051);

2. Ajax Council strongly recommends that the Carruthers Creek Headwaters be protected and not considered for urban expansion under Durham Region's MCR due to the ecological sensitivity of the area and significant flood and erosion risks posed to Ajax;

3. Ajax Council directs Planning & Development Services staff to prepare a report on the Region's Land Needs Scenarios Assessment Summary Report for the April 4, 2022 Community Affairs and Planning Committee with their professional recommendation;

4. Ajax Council directs Corporate Communications staff to promote the opportunity for the public to complete the Region's Alternative Land Needs Scenarios Survey by April 14, 2022; and

5. This motion be circulated to the Hon. Mark Holland, MP for Ajax, Ajax candidates running in the upcoming provincial election, all Durham area municipalities, Environmental Action Now Ajax-Pickering, Environmental Defence, Stop Sprawl Durham, Premier Doug Ford, Minister Steve Clark, Durham Environmental Advisory Committee, Durham Region Roundtable on Climate Change Committee, Durham Food Policy Council, and Climate Justice Durham for their consideration and support.

CARRIED

Recorded Vote

In Favour: Mayor Collier, Regional Councillor Crawford, Regional Councillor Dies, Councillor Khan, Councillor Tyler Morin, Councillor Bower, Regional Councillor Lee

Opposed: None

9.3 **Traffic and Safety Impacts of School Bell Time Changes**

Regional Councillor Dies and Councillor Bower introduced the motion and reviewed its contents.

Moved by: J. Dies
Seconded by: L. Bower

WHEREAS Durham Student Transportation Services (DSTS), which looks after home to school transportation for the Durham District School Board (DDSB) and Durham Catholic District School Board (DCDSB), has conducted a review of 2022/2023 bell times, in part to address a province-wide driver shortage;

AND WHEREAS as a result of the review, bell time changes at 49 schools have been recommended to the DDSB and DCDSB, including a time variance of 25 minutes later for Ajax H.S. The result will be approximately 1,900 students at Ajax H.S. and neighbouring St Bernadette C.S. leaving school by car, bus, and foot for bell times which are just 5 minutes apart;

AND WHEREAS the area of Bayly Street East and Harwood Avenue, where Ajax H.S. and St Bernadette C.S. are located, is a high-traffic designated community safety zone, and is being targeted for improvement through Vision Zero and the Automated Speed Enforcement program;

AND WHEREAS by shifting bell times at these schools closer together, there is the potential unintended consequence of increasing pedestrian and road traffic and putting student safety at risk;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council ask the DDSB Board of Trustees to reconsider the recommended bell time change at Ajax H.S. due to the unintended safety risks; and

2. This motion be circulated to the DSTS and DCDSB for their consideration and support.

CARRIED

10. By-laws

Motion to Suspend the Rules of Procedure

Moved by: R. Tyler Morin
Seconded by: M. Crawford

That the Rules of Procedure be suspended in order to introduce By-law number 27-2022, being a by-law to repeal by-law #08-2020 (delegated authorities related to the COVID-19 pandemic).

CARRIED
on 2/3rds

Moved by: A. Khan
Seconded by: J. Dies

That By-law numbers 16-2022 to 25-2022 be read a first, second and third time and passed.

CARRIED

10.1 **By-law #27-2022**

Council Members asked questions regarding timing for lifting the emergency declaration, funding implications, and sought clarification regarding effects of lifting the emergency declaration and repeal of the delegated authorities by-law. S. Baker responded to questions from Council Members.

Moved by: L. Bower
Seconded by: R. Tyler Morin

That By-law number 27-2022 (repeal of by-law 08-2020 delegated authorities for COVID-19) be read a first, second and third time and passed.

CARRIED

11. Notice of Motion

None

12. New Business - Notices & Announcements

Council Members highlighted upcoming events and activities including the first day of Ramadan on April 3, a community Ward 1 meeting on April 12, 2022, a community Ward 3 meeting on March 30, 2022, and a fundraiser for Ukraine presented by the Pickering Community Concert Band on April 24, 2022.

Council Members congratulated the OWHL U22 Elite Champions hockey team for their League Championship and wished them luck at the Provincials, and congratulated the Ajax Pickering Raiders on a remarkable season.

13. Confirming By-Law

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That By-law number 26-2022 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on March 28, 2022 be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: A. Khan
Seconded by: L. Bower

That the March 28, 2022 meeting of the Council of the Town of Ajax be adjourned (10:25 p.m.)

CARRIED

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Mayor

_____
D-Clerk